

ChaufX Inc.

WEBSITE AND PLATFORM TERMS AND CONDITIONS

Effective Date: July 1, 2026

Please read these Terms and Conditions carefully before accessing or using the ChauffX platform. By accessing or using the Services, you agree to be bound by these Terms.

1. Introduction and Acceptance

These Terms and Conditions (these “**Terms**”) govern your access to and use of the website located at www.chaufX.ca (the “**Website**”), our customer-facing mobile application (the “**Customer App**”), and any related products, features, and services provided by ChauffX Inc. (“**ChaufX**,” “we,” “us,” or “our”) (collectively, the “**Services**”). The Services may be transitioned to a successor corporation on or about the date of incorporation, and any such assignment is permitted under Section 30.

By creating an Account, downloading or accessing the Customer App, or otherwise accessing or using the Services, you agree to be bound by these Terms, our Privacy Policy, and any additional policies referenced herein. If you do not agree to these Terms, you must not access or use the Services.

2. Changes to These Terms

We may update these Terms from time to time at our sole discretion. When we do, we will revise the effective date at the top of this page and notify you through the Services or by email to the address associated with your Account. Changes take effect on the date of posting unless otherwise specified. Your continued use of the Services following the posting of updated Terms constitutes your acceptance of the changes.

3. Definitions

In these Terms, the following capitalized terms have the meanings set out below:

“**Account**” means a registered customer user account on the Services.

“**Account Holder**” means the individual who creates an Account and is the primary user of the Services under that Account.

“**Authorized User**” means any family member, co-worker, or associate added to an Account by the Account Holder in accordance with Section 7, where that feature is offered.

“**Booking**” means a confirmed reservation made through the Services for a Driver to operate the Customer's Vehicle during a specified period.

“**Cancellation Fee**” means the fee payable by a Customer for a cancelled Booking in accordance with Section 10.

“**Charges**” means all fees payable in connection with the Services, including Booking fees, Membership Fees (if applicable), Cancellation Fees, No-Show Fees, tolls, parking, and any other applicable charges.

“**Customer**” means an individual who creates an Account and requests Bookings through the Services.

“Driver” means an independent contractor engaged through the Services to provide driving and related assistance services to Customers.

“Driver Agreement” means the Independent Contractor Agreement entered into between ChauffX and a Driver.

“Membership” means a paid subscription to a Membership Tier offered by ChauffX under Section 8, where that feature is offered.

“No-Show Fee” means the fee payable by a Customer for a no-show in accordance with Section 10.

“Service Credits” means non-cash, non-transferable credits issued to an Account that may only be applied toward future ChauffX Services, as further described in Section 12, where that feature is offered.

“Services” means the Website, the Customer App, and all related features, tools, and communications.

“Vehicle” means a motor vehicle owned, leased, or lawfully possessed by the Customer and designated by the Customer for use in a Booking.

4. Nature of the Services

Marketplace only. ChauffX is a technology platform that connects Customers with independent Drivers. ChauffX does not provide transportation services, does not own or operate any Vehicle used in a Booking, and is not a taxi, limousine, ride-hailing, carrier, livery, or vehicle-for-hire service. Drivers are independent contractors and are not employees, agents, or partners of ChauffX.

Driver operates Customer's Vehicle. Drivers engaged through the Services operate the Customer's own Vehicle. The Customer retains full ownership, possession, and responsibility for the Vehicle at all times, including full responsibility for insurance, registration, roadworthiness, and compliance with all applicable laws.

No guarantee of availability, punctuality, or quality. We do not guarantee the availability, punctuality, or service quality of any particular Driver at any particular time. Bookings are subject to Driver availability.

5. Eligibility

You must be at least eighteen (18) years of age (or the age of majority in your province or territory, if higher) to use the Services. By agreeing to these Terms, you represent and warrant that you meet this age requirement, have the legal capacity to enter into a binding agreement, and, where you are booking on behalf of another person, that you have the authority to do so. The Services are not available to any person whose Account has previously been deactivated, suspended, or terminated.

6. Account Registration and Security

To access the Services, you must create an Account. You agree to: (a) provide accurate, current, and complete information during registration and keep your Account information up to date; (b) use only one (1) active Account; (c) maintain the confidentiality of your login credentials; (d) be fully responsible for

all activities that occur under your Account; and (e) notify us immediately of any unauthorized use of your Account.

7. Authorized Users and Account Sharing

Adding Authorized Users. The Account Holder may add Authorized Users to the Account up to the limits set out below. The Account Holder is solely responsible for ensuring that each Authorized User complies with these Terms. Any act or omission of an Authorized User is deemed an act or omission of the Account Holder.

- **Basic (transactional) Accounts:** no additional Authorized Users; the Account is for the individual Account Holder only.
- **Plus Members:** up to three (3) additional family members residing in the same household as the Account Holder (spouse, domestic partner, parent, or child aged 18 or over), for a total of four (4) people on the Account.
- **Concierge Members:** up to four (4) additional family members, co-workers, or associates, for a total of five (5) people on the Account.
- **Corporate Members:** as specified in the applicable Corporate Membership agreement.

Independent acceptance. ChauffX may require each Authorized User to create their own Account and independently accept these Terms as a condition of accessing the Services. Such independent acceptance supplements, but does not replace, the Account Holder's obligations. Minors under eighteen (18) may not receive the Services unless accompanied by an Authorized User on the Account who is at least eighteen (18) years of age.

8. Membership Tiers, Billing, and Charges

8.1 Membership Tiers

ChauffX offers the following Membership Tiers. Specific plan details, features, and current pricing are available on the Website and within your Account:

- **Basic (Transactional) Membership.** No monthly fee (\$0/month). Basic Members pay a published hourly rate per booking with a minimum Booking duration as set out on the Website. Designed for occasional pay-as-you-go use with no ongoing commitment.
- **Plus Membership.** \$100 per month or \$999 per year. Plus Members pay a reduced hourly rate of \$21 per Booking, may add Authorized Users in accordance with Section 7, and receive priority booking and preferred Driver selection as described on the Website.
- **Concierge Membership.** \$200 per month or \$2,199 per year. Concierge Members pay a reduced hourly rate of \$21 per Booking, may add Authorized Users in accordance with Section 7, and receive concierge-level booking assistance, access to event Drivers, and priority booking on high-demand dates as described on the Website.
- **Corporate Membership.** Custom pricing tailored to the organization's needs, as set out in a separate Corporate Membership agreement.

8.2 Free Trial

Where offered, a free trial period of fourteen (14) days will begin on the date of enrolment in a Plus or Concierge Membership. During the trial, you may use the Services at the applicable Membership hourly rate without being charged the Membership Fee. If you do not cancel before the end of the trial, your Membership Fee will be charged on the fourteenth (14th) day following enrollment. Cancellation during the trial does not relieve you of responsibility for hourly charges incurred during the trial.

8.3 Recurring Charges and Auto-Renewal

Plus, Concierge and Corporate Memberships are automatically renewing subscriptions that continue until cancelled. Your Membership Fee will be charged on a recurring basis (monthly or annually, as applicable) to the payment method on file. You authorize ChauffX to: (a) store your payment methods; (b) charge Membership Fees; and (c) charge Booking-related fees, tips, Cancellation Fees, and No-Show Fees. If your primary payment method fails, any secondary payment method on file may be used.

8.4 Membership Fees Non-Refundable; Changes

All Membership Fees are non-refundable once charged. Cancellation of your Membership will take effect at the end of the current billing cycle, and you will retain access to Membership benefits through the remainder of that cycle. No partial or prorated refunds will be issued for unused portions of a billing cycle. ChauffX may change Membership Fees and other Charges on at least thirty (30) days' prior written notice to the email address associated with your Account. Your continued use of the Services after the effective date of a price change constitutes your acceptance.

8.5 Other Charges

In addition to Booking rates and any Membership Fees, use of the Services may result in Cancellation Fees and No-Show Fees (Section 10), gratuities (optional, added through the Services), and reasonable pass-through costs such as tolls, parking, or other incidental expenses incurred in connection with a Booking. Where free or validated parking is not available, ChauffX may pass through reasonable costs necessary for the Driver to perform the Services.

8.6 Pricing and Taxes

Pricing is displayed at the time of Booking and, other than Membership Fees, is a flat rate or hourly rate agreed between the Customer and ChauffX at the time of the Booking. Applicable taxes (including HST or GST and provincial sales tax) will be added where required by law.

8.7 Payment

Payment is processed by a third-party payment processor. By placing a Booking, you authorize the payment processor to charge your designated payment method for the full amount of the Booking, any Membership Fees, and any other applicable Charges, plus applicable taxes. ChauffX does not store full credit card or bank account details; these are handled by the payment processor under its own terms and privacy policy. ChauffX may suspend or restrict access to the Services for Accounts with outstanding balances or failed payments.

9. Customer Obligations and Vehicle Ownership

Vehicle ownership representation. You represent and warrant that: (a) you are the owner or lawful possessor of the Vehicle and have the authority to authorize a third-party Driver to operate it; (b) the Vehicle is roadworthy, mechanically sound, and free of any known defects that could impair safe operation; (c) the Vehicle is registered and plated in compliance with applicable provincial law; (d) you maintain a valid automobile insurance policy on the Vehicle meeting or exceeding the minimum coverage required by your province of residence; and (e) your insurance policy permits a third-party driver to operate the Vehicle. You agree to provide proof of any of the foregoing upon reasonable request.

Additional customer obligations. You further agree to:

- treat Drivers with respect and refrain from illegal activity, intoxication, or substances that impair safe participation in the Booking;
- refrain from transporting or conveying any unlawful, dangerous, or hazardous goods or substances;
- Complete the pre-trip and post-trip Vehicle condition check prescribed by the Services for each Booking.
- comply with all applicable laws and with reasonable instructions from the Driver necessary to perform the Services safely; and
- indemnify ChauffX for any breach of the representations and warranties in this Section, in accordance with Section 21.

10. Advance Booking, Cancellation, and No-Show Policy

10.1 Advance booking requirements

Standard Bookings require a minimum of two (2) hours' advance notice prior to the requested pickup time. Overnight or multi-day Bookings require a minimum of seventy-two (72) hours' advance notice. ChauffX may modify these notice periods on reasonable notice through the Services.

10.2 Cancellation Fees

Standard Bookings cancelled with less than one (1) hour's notice prior to the scheduled pickup time are subject to a Cancellation Fee of 50% of the booking amount. Overnight or multi-day Bookings cancelled with less than forty-eight (48) hours' notice are subject to a Cancellation Fee of 50% of the booking amount. A Booking cancelled within twenty-four (24) hours after its creation will not incur a Cancellation Fee, provided that the scheduled pickup time is more than twenty-four (24) hours after the time of Booking (or, for overnight or multi-day Bookings, more than forty-eight (48) hours after the time of Booking).

10.3 No-Show Policy

Drivers will wait up to forty-five (45) minutes after the scheduled pickup time to make contact with the Customer. If the Customer has not made contact with the Driver or ChauffX within forty-five (45) minutes, the Booking is treated as a no-show, cancelled, and the Customer is subject to a No-Show Fee of 50% of the booking amount. Cancellation Fees and No-Show Fees are non-refundable once assessed, except where a refund is required by applicable law.

11. Driver Status and Driver's Right to Decline

Driver status. Drivers engaged through the Services are vetted for licence status and are subject to background checks prior to onboarding. ChauffX may suspend, remove, or decline to engage any Driver at its sole discretion for safety, regulatory, or quality reasons. ChauffX does not endorse, certify, or guarantee the personal attributes, professional skill, or fitness of any particular Driver beyond the vetting described in the Driver Agreement and the Privacy Policy.

Driver's right to decline. A Driver may refuse to commence or continue a Booking if: (a) the Customer appears to be intoxicated, impaired, threatening, violent, armed, or otherwise unsafe; (b) the Vehicle is unfit to operate, uninsured, unregistered, or unsafe; (c) the Customer has requested the transport of unlawful or hazardous goods; or (d) the Driver reasonably identifies any other safety or legal concern. A refusal under this Section does not give rise to a refund claim by the Customer.

12. Insurance and Service Credits

12.1 Customer's insurance is primary

The Customer's automobile insurance policy on the Vehicle is the primary insurance in respect of any loss, damage, or third-party claim arising from the operation of the Vehicle during a Booking. The Customer is solely responsible for maintaining adequate coverage. The Customer represents and warrants that the Customer's policy permits operation by a third-party driver engaged through a platform such as ChauffX, and that no policy exclusion applies to that use.

12.2 Driver's insurance

Drivers are required under the Driver Agreement to maintain a valid driver's licence and a personal automobile insurance policy meeting the minimum limits specified in that agreement. The Driver's insurance is intended to operate as excess coverage in the event the Customer's primary coverage is exhausted, and may also respond to incidents involving the Driver's own vehicle while entering or exiting the Customer's location in connection with the Services. ChauffX does not guarantee or warrant the adequacy of any particular Driver's personal coverage.

12.3 Platform umbrella / commercial general liability coverage

ChauffX maintains a commercial general liability insurance policy with non-owned automobile coverage (the “**Platform Policy**”), subject to the policy's actual terms, conditions, and exclusions. The Platform Policy is intended to apply secondary and in excess of the Customer's applicable and collectible primary insurance, including the Customer's personal auto insurance and any other available insurance, where: (a) a covered claim arises from the use of the Services during a Booking with a Driver operating the Customer's Vehicle; and (b) the applicable primary limits are exhausted by payment of covered losses. Without limiting the Platform Policy's exclusions, the Platform Policy will not apply to: (i) any claim within or below primary insurance limits; (ii) first-party losses, including damage to the Customer's own Vehicle, diminished value, loss of use, or personal property; (iii) intentional, criminal, fraudulent, or grossly negligent acts; (iv) use of a Vehicle that is unregistered, materially unsafe, or not in compliance with law; (v) cargo or hazardous materials; (vi) non-Booking activities or periods not booked through the Services; (vii) punitive or exemplary damages to the extent uninsurable; or (viii) contractual liabilities

assumed outside these Terms. All coverage is subject to the insurer's policy wording, which controls in the event of any conflict with these Terms.

12.4 Service Credits toward deductible

Where a Driver is determined to be at fault for an incident arising during a Booking, and the Customer submits concrete evidence (such as video evidence, a police report, dash-cam footage, or similar documentation) within thirty (30) days of the incident, ChauffX may, at its sole discretion, issue Service Credits to the Customer's Account toward the Customer's insurance deductible. Service Credits are non-cash, non-transferable, not redeemable for cash, and may only be applied toward future ChauffX Services. Maximum Service Credit amounts are as follows:

- Basic (Transactional) Members: not eligible for Service Credits.
- Plus Members: up to [\$500] in Service Credits per incident.
- Concierge Members: up to [\$1,000] in Service Credits per incident.
- Corporate Members: up to [\$2,000] in Service Credits per incident.

The issuance of Service Credits is not an admission of liability by ChauffX, the Driver, or any other party and is not intended to replace or supplement any insurance payment by the Customer's insurer or the Driver's insurer.

12.5 Rental Vehicles

If a Customer uses a rental vehicle in connection with a Booking, the following additional requirements apply:

- The Customer represents and warrants that the rental vehicle is covered by full comprehensive and collision insurance for the entire duration of the Booking, meeting or exceeding the coverage minimums required by the rental agreement and applicable provincial law.
- To comply with the rental agreement, the Driver assigned to the Booking must be listed as an authorized driver on the rental vehicle contract prior to the commencement of service. The Customer agrees to provide the Driver's full legal name, the rental company's authorization requirements, the rental contract number, the rental vehicle's make, model, and licence plate, and the rental period dates at the time of Booking.
- Failure to satisfy the requirements in this Section 12.5, or failure to add the assigned Driver to the rental contract prior to departure, may result in cancellation of the Booking, and a Cancellation Fee may apply in accordance with Section 10.
- The Customer indemnifies ChauffX against any claim from a rental company arising from unauthorized driver operation of the rental vehicle.

13. No Off-Platform Solicitation

No circumvention of the platform. You agree not to solicit, arrange, accept, or engage any Driver or service provider you have been matched with through the Services for any transportation, driving, or related services outside the Services, without ChauffX's prior written consent. This prohibition applies during your use of the Services and for twelve (12) months after your last Booking.

No coverage or liability off-platform. Activities arranged outside the Services are outside the scope of the Services. ChauffX disclaims any responsibility, insurance coverage, or liability arising from any such off-platform arrangement. Any platform-level insurance maintained by ChauffX will not apply to non-Booking activities, off-platform arrangements of any kind, or periods not booked through the Services.

14. Communications and Electronic Messages

By creating an Account, you consent to receive transactional communications from ChauffX relating to your Bookings, Account, and the Services, including booking confirmations, receipts, incident notifications, and service announcements. These are exempt from the express consent requirements of Canada's *Anti-Spam Legislation* (CASL) as they are necessary for the performance of the Services. Marketing communications from ChauffX (including promotional emails, SMS, or push notifications) will only be sent where you have provided express consent. You may withdraw consent at any time through the unsubscribe mechanism in any marketing message or by contacting us at info@ChauffX.ca

15. Acceptable Use

You agree to use the Services only for lawful purposes and in accordance with these Terms. You must not:

- use the Services in violation of any applicable federal, provincial, or municipal law or regulation;
- provide a Vehicle that is not lawfully registered, insured, and roadworthy;
- use the Services to transport or convey any unlawful, dangerous, or hazardous goods or substances;
- harass, threaten, discriminate against, or abuse any Driver or other user;
- impersonate another person or misrepresent your identity or age;
- attempt to circumvent the Services as prohibited by Section 13;
- reverse engineer, decompile, copy, or create derivative works of the Services;
- use the Services to harvest, collect, or exploit the personal information of Drivers or other users;
- scrape, data mine, or extract data from the Services, or bypass security controls or rate limits; or
- Use the Services in any manner that damages, disables, overburdens, or impairs the Services.

16. Intellectual Property

All intellectual property rights in the Services, including the Website, the Customer App, the ChauffX brand, logos, trademarks (registered or unregistered), and all associated content, are owned by or licensed to ChauffX Holdings Inc.. Subject to your compliance with these Terms, we grant you a limited, non-exclusive, non-transferable, revocable licence to access and use the Services for your personal, non-commercial use. You may not copy, reproduce, modify, distribute, or create derivative works of the Services or its content without our prior written consent. Any use of ChauffX's intellectual property to build, train, or benchmark any competing product, model, or service is expressly prohibited.

17. User Content

You retain all intellectual property rights in the content you submit through the Services, including reviews, ratings, photographs, and messages (“User Content”). By submitting User Content, you grant ChauffX a non-exclusive, royalty-free, transferable, sublicensable, worldwide licence to use, host, store, transmit, display, and modify the User Content solely for the purpose of operating, maintaining, and providing the Services and for business and safety purposes (including responding to disputes, fraud, or safety incidents). You are responsible for the legality, accuracy, and appropriateness of your User Content.

18. Confidentiality of Platform Information

You agree to keep confidential and not disclose to any third party, and not to use for any purpose other than accessing and using the Services, any non-public information about ChauffX obtained through the Services, including business methods, pricing structures, Service Credits and insurance program details, platform architecture, safety protocols, and risk controls. This Section does not apply to information that is or becomes publicly available through no fault of yours, or to disclosures made with the prior written consent of ChauffX or as required by law.

19. Assumption of Risk

You acknowledge that operating and riding in motor vehicles involves inherent risks, including collisions, sudden stops, adverse road or weather conditions, other drivers' negligence, and vehicle malfunction. You voluntarily assume all such risks arising from your use of the Services and from a Driver's operation of your Vehicle, including risks of property damage, personal injury, or death, except to the extent directly caused by the gross negligence or wilful misconduct of ChauffX. You are solely responsible for ensuring your Vehicle is legally compliant, registered, insured, and in safe operating condition prior to any Booking. Nothing in this Section limits any liability that cannot be waived at law, including non-waivable consumer protection rights in your province of residence.

20. Disclaimer of Warranties

THE SERVICES AND ALL MATERIALS PROVIDED THROUGH THE SERVICES ARE MADE AVAILABLE ON AN “AS IS” AND “AS AVAILABLE” BASIS. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, CHAUFX DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.

Without limiting the foregoing, we do not warrant that the Services will be uninterrupted, error-free, or free of harmful components, or that any particular Driver will be available at any particular time. We make no representation or warranty regarding the skill, conduct, or fitness of any Driver beyond the vetting described in the Driver Agreement.

21. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT WILL CHAUFX, ITS OWNERS, OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, OR SUPPLIERS BE LIABLE TO YOU OR ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING WITHOUT LIMITATION DAMAGES FOR LOSS OF PROFITS, REVENUE, GOODWILL, DATA, OR OTHER INTANGIBLE LOSSES, ARISING OUT OF OR IN CONNECTION WITH YOUR ACCESS TO OR USE OF (OR INABILITY TO ACCESS OR USE) THE SERVICES, REGARDLESS OF THE THEORY OF LIABILITY AND EVEN IF CHAUFX HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, CHAUFX'S TOTAL AGGREGATE LIABILITY TO YOU FOR ALL CLAIMS ARISING OUT OF OR IN CONNECTION WITH THESE TERMS OR THE SERVICES WILL NOT EXCEED THE GREATER OF (A) THE AMOUNTS YOU HAVE PAID TO CHAUFX IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, OR (B) ONE HUNDRED CANADIAN DOLLARS (CAD \$100.00).

Nothing in this Section limits any liability that cannot be excluded or limited by applicable law, including any non-waivable consumer protection rights under the Consumer Protection Act, 2002 (Ontario) or analogous provincial legislation.

22. Indemnification

You agree to indemnify, defend, and hold harmless ChauffX and its owners, officers, directors, employees, agents, and affiliates from and against any and all claims, liabilities, damages, losses, costs, and expenses (including reasonable legal fees) arising out of or in connection with: (a) your use of the Services; (b) your breach of these Terms; (c) your Vehicle or any failure of your Vehicle's insurance or registration; (d) your violation of any applicable law; (e) any claim by your insurer against ChauffX or any Driver; (f) your User Content; (g) your breach of any representation or warranty in Section 9; or (h) any dispute between you and a Driver other than a dispute arising from ChauffX's gross negligence or wilful misconduct.

23. Accident and Incident Reporting

In the event of any accident, collision, near-miss, vehicle damage, personal injury, or other safety incident during or in connection with a Booking, the Customer agrees to: (a) ensure the immediate safety of all persons; (b) contact emergency services (911) if required; (c) report the incident to ChauffX through the incident reporting feature in the Services, or by emailing info@chaufx.ca, within two (2) hours of the event; (d) provide accurate and complete automobile insurance information upon request; and (e) cooperate with platform staff, insurers, and authorities in any investigation.

24. Suspension and Termination

We may suspend or terminate your Account and access to the Services immediately, with or without notice, for any reason, including without limitation if you breach any provision of these Terms, provide inaccurate information, engage in fraudulent or unlawful conduct, or engage in conduct that we reasonably believe may expose ChauffX, other users, or third parties to harm or liability.

Upon termination, your right to use the Services will cease immediately. Scheduled Bookings may be cancelled, and all outstanding Charges become immediately due. Sections that by their nature should survive termination will survive, including without limitation Sections 9, 12, 13, 16, 17, 18, 19, 20, 21, 22, 25, 26, 28, and 29.

25. Privacy

Your use of the Services is governed by our Privacy Policy, which forms part of these Terms. The Privacy Policy describes how we collect, use, disclose, and protect your personal information in accordance with the *Personal Information Protection and Electronic Documents Act* (PIPEDA) and applicable provincial privacy legislation, including in Quebec (Law 25), British Columbia (PIPA), and Alberta (PIPA).

26. Force Majeure

ChaufX will not be liable for any failure or delay in performing its obligations under these Terms where such failure or delay results from circumstances beyond its reasonable control, including without limitation, natural disasters, pandemics, acts of government, power failures, internet or telecommunications failures, labour disputes, or cyberattacks.

27. Governing Law and Dispute Resolution

These Terms are governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein, without regard to conflict of law principles.

Except for claims that cannot be adjudicated in a small claims court or that seek injunctive or other equitable relief, any dispute arising out of or in connection with these Terms or the Services shall be resolved exclusively in the courts of the Province of Ontario, and you irrevocably submit to the jurisdiction of those courts. Nothing in this Section limits any non-waivable consumer rights under the consumer protection legislation of your province of residence.

Before commencing any legal proceeding, you agree to provide written notice of the dispute to ChauFX at info@chaufx.ca and to engage in good-faith discussions for a period of at least thirty (30) days, unless immediate court relief is required to preserve a right.

28. Severability

If any provision of these Terms is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, that provision will be severed or modified to the minimum extent necessary, and the remaining provisions will continue in full force and effect.

29. Entire Agreement

These Terms, together with our Privacy Policy, any Cancellation Policy, any Corporate Membership agreement, and any other policies or agreements referenced herein, constitute the entire agreement between you and ChauFX with respect to the Services and supersede all prior or contemporaneous communications, proposals, and agreements, whether oral or written.

30. Waiver, Assignment, and Notices

Waiver. No failure or delay by ChauFX in exercising any right or remedy under these Terms will operate as a waiver of that right or remedy.

Assignment. You may not assign or transfer any of your rights or obligations under these Terms without our prior written consent. We may assign our rights and obligations under these Terms, including to a successor corporation on incorporation of the business or in connection with any merger, acquisition, financing, or sale of all or substantially all of our assets.

Notices. Notices to you may be given through the Services, by email to the address associated with your Account, or by posting on the Website. Notices to us should be sent to ChauFX, Attention: Maxwell A. Enumah, 2 Simcoe Street South, Suite 300, Oshawa, Ontario L1H 8C1. Email: maxwell@chaufx.ca.

31. Contact

If you have any questions about these Terms, please contact us at:

Email: info@chaufx.ca

Website: www.ChaufX.ca

Phone: +1 (647) 919-7237

Last updated: May 3, 2026